

USE OF OTHER THAN FULL AND OPEN COMPETITION SAT

1. Identification of Agency and Contracting Activity

Contracting Activity

Naval Supply Systems Command (NAVSUP), Fleet Logistics Center - San Diego (FLCSD), Contracting Department, Code 200
3985 Cummings Road, BLDG 116, San Diego, CA 92136-4000.

Requiring Agency

Naval Postgraduate School (NPS), Information Technology and Communication Services (ITACS)
1 University Circle, Monterey, CA 93943

2. Nature and/or Description of the Action Being Approved

The proposed action is a firm-fixed-price purchase order to OCLC, Inc. for proprietary software licenses, hosting, and support services. The total estimated value of this acquisition includes a base year and four (4) one-year option periods.

The Dudley Knox Library utilizes OCLC (Online Computer Library Center, Inc.) to provide cataloging, discovery, proxy server and interlibrary loan (ILL) services to Naval Postgraduate School (NPS) faculty, staff and students, and the broader library community. OCLC services integrate with critical library systems that include ExLibris Alma/Primo Discovery System for discovery of library resources and the OCLC ILLiad system to manage all ILL requests. OCLC is the platform used by most federal, academic, and public libraries for cataloging

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value

The Dudley Knox Library requires continued access to a suite of integrated services for cataloging, discovery, proxy server, and interlibrary loan (ILL) functions. These services support the research and educational needs of Naval Postgraduate School faculty, staff, and students.

The specific requirements are as follows:

Item#	Qty	Unit	MFR	Part No.	Description
1	1	EA	OCLC	3000030	Cataloging and Metadata Subscription
2	1	EA	OCLC	3000065	Wordshare ILL
3	1	EA	OCLC	3000001	First Search
4	1	EA	OCLC	2000036	ILLiad License
5	1	EA	OCLC	2000037	ILLiad Hosted Server
6	2	EA	OCLC	3000086	EZProxy Hosted
7	2	EA	OCLC	2000251	EZProxy Analytics

Required source: OCLC

Estimated cost: \$311,418.00

Required delivery date: 07/01/2026

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar? **Yes**

Estimated Dollar Value:

FY/Option/Ordering Period	OM&N	OPN	RDT&E
FY2026- FY2030	311,418.00	0.00	0.00
Subtotals	311,418.00	0.00	0.00
Total 311,418.00			

4. Statutory Authority Permitting Other Than Full and Open Competition

10 U.S.C. 3406(c)(5) as implemented by FAR 16.505(b)(2)(i)(B) Only One Awardee is Capable

41 U.S.C. 1903 as implemented by FAR 13.106-1(b)(1)(i) One Source Reasonably Available

Additional Information Regarding Statutory Authority if Applicable

Procurement Request/Solicitation/Purchase Order Number: **1301331187**

Control Number:

I. Background

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, the estimated cost/price, and the required date/period of performance

Please reference item 3 above (Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value)

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. ONLY ONE RESPONSIBLE SOURCE

Yes

1. Restrictive Rights

Yes

The source has established proprietary rights, limited rights in data, patent rights, copyright processes in the item or service required.

Explain what rights are restricted, why the restrictive rights make the required item or service available from only one source, and why another company could not satisfy the need.

OCLC, Inc. is the sole provider of the required services and is uniquely qualified to meet the agency's needs for the following reasons:

- **Proprietary System and Data:** OCLC is a non-profit global library cooperative that owns and operates WorldCat, the world's most comprehensive database of information library collections. The required cataloging and ILL services are dependent on access to this proprietary database. The specific products listed in the Statement of Requirements including WorldShare ILL, ILLiad, and EZProxy, are proprietary software and services developed, sold, and maintained exclusively by OCLC.
- **Industry Standard and Integration:** As stated in the requirement documentation, "OCLC is the platform used by most federal, academic, and public libraries for cataloging services." The Dudley Knox Library's existing critical systems, including the ExLibris Alma/Primo Discovery System, are deeply integrated with OCLC. Replacing OCLC with another provider would require a complete overhaul of the library's core systems, resulting in unacceptable costs, data migration risks, and disruption of essential library services to NPS personnel.
- **Lack of Viable Alternatives:** No other vendor can provide access to the proprietary WorldCat database or the specific OCLC-branded software required. Alternative providers cannot offer the same level of integration or access to the global shared-data network essential for cataloging and interlibrary loans.

Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable:

Market research confirms that OCLC, Inc. is the only source capable of providing the required proprietary services. The nature of the requirement is for specific, branded products that are integral to the library's function. These products are only available directly from the manufacturer, OCLC, Inc. A search for alternate providers of these services yields no other results.

Any Other Facts Supporting the Use of Other Than Full and Open Competition:

Continuity of service is essential. The Dudley Knox Library's entire workflow for cataloging new materials and fulfilling interlibrary loan requests is built around the OCLC network. Any lapse in service would directly and negatively impact the library's ability to support the NPS mission. A change in providers would necessitate significant retraining of staff and end-users, and would break established resource-sharing agreements with other libraries in the OCLC network.

2. Exclusive Licensing Agreements

No

The item or service is only available from the Original Equipment Manufacturer (OEM), or the authorized distributor or technical representative for the OEM.

3. Other Reasons

No

Provide details on mission impact if requirement is not solicited from only one source

B. BRAND NAME

No

Item required must be a brand name product, or feature of a product, particular to one manufacturer. Discuss why you are precluding consideration of a product made by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, or cannot be modified to meet, the agency's needs

C. UNUSUAL AND COMPELLING URGENCY

No

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine process would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products and products lacking the particular feature do not meet, or cannot be modified to meet, the agency's need.

1. Date on which the requirement was first identified:

2. Required delivery date/period of performance:

07/01/2026 to 07/01/2026

3. Explanation of why delivery/commencement of services by the date mentioned above is required: Explain the impact to the mission if the date above is not met, and the circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.

4. If appropriate, include any additional pertinent information:

CERTIFICATIONS/APPROVALS:

TECHNICAL CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance

NAFFZIGER.GEOFFREY.STEPHEN.124967106 Geoffrey Naffziger (831) 656-3331 03/10/2026

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Requirements Cognizance

CONTRACTING OFFICER CERTIFICATION

I certify that this Exception to Fair Opportunity is accurate and complete to the best of my knowledge and belief. The Contracting Officer's signature below represents approval document.

Contracting Officer's Signature

LEVEL ABOVE CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief. The Level Above the Contracting Officers signature below represents approval document.

Level Above the Contracting Officer

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Legal Sufficiency Review

CONTRACTING ACTIVITY COMPETITION ADVOCATE REVIEW

Contracting Activity Approval

HEAD OF CONTRACTING ACTIVITY APPROVAL

Upon the basis of the above justification, I hereby approve, as Head of Contracting Activity, the solicitation of the proposed procurement described herein using other than competition, pursuant to the authority of (Placeholder for US code citation)

HCA Approval